Final – October 20, 2025

This 2025 **T3 EFILE Certification Agreement** is made in duplicate and effective as of the 23 day of October, 2025.

Between:

Canada Revenue Agency
(hereinafter referred to as the "CRA")

Attention: T3 Electronic Filing Services Section
750 Heron Road
6th floor
Ottawa, ON
K1A 0L5

And

Name: MICROSOPHIC INC
Please insert the name of the legal entity i.e. the company name, or sole proprietor (hereinafter referred to throughout this Agreement as "Software Developer").

Street Address: #14, 6226 Orbitor Drive

City and Postal Code: Mississauga, ON

Telephone Number: L4W 4Y8

Email Address: support@visualtax.com

Fax:

Notices to the attention of:
(insert address if different from above)

Recitals:

A. CRA has established testing procedures to test whether tax preparation Software Products can be used for the electronic filing of the T3 Trust Returns (defined below) with CRA through CRA's T3 EFILE Electronic Filing Service and are capable of producing data that can be read and processed by CRA's mainframe computer in accordance with CRA's specifications. The CRA has established certain rules that must be adhered to throughout the filing program to maintain certification.

B. The CRA has in addition, established testing procedures to assess the following functionality contained in the Software Products: Electronic Transmission of Form T1135 "Foreign Income Verification Statement".

C. The Software Developer wishes to participate in the CRA T3 EFILE Certification testing program to ensure that its Software Product meets the CRA JavaScript Object Notation specifications and performs the required tax calculations as determined by CRA for the 2025 taxation year.

D. Accordingly, the purpose of this Agreement is to set out the various aspects of the T3 EFILE Certification process, including but not limited to, the testing required to obtain certification, the use of the Official Mark "EFILE", as well as other requirements and obligations before, during and after the certification process.

E. This Agreement further sets out the requirements for access to the following CRA services: T1135 Web service "Foreign Income Verification Statement ".

Now, therefore, in consideration of the mutual covenants and Agreements herein set out and subject to the terms and conditions set out in this Agreement, the parties agree as follows:

1.0 Interpretation

1.1 Definitions: The following words shall have the meanings ascribed to them below:

(a) "Agreement" means this Agreement including the following documents which are incorporated herein by reference:
  (i) T3 EFILE Certification Guide;
  (ii) T3 EFILE Software Certification Application;
  (iii) T3 Electronic Filers Manual, the following specified chapters and documents: Chapter 1 – T3 Electronic Records Preparation; Chapter 2 – T3 EFILE Error Messages; Chapter 4 – T3 Return Specifications for Software Developers; T3 EFILE Web service User Guide; Chapter 6 – T1135 XML Specifications for T1 EFILE/NETFILE, T2 Corporation, Partnership (T5) and T3 Trust Software Developers; and Rest-Open API.

(b) "CRA Software Product Identifier" means a numeric software code assigned by CRA to each Software Product submitted to CRA for T3 EFILE Certification testing.

(c) "T3 EFILE Electronic Filing Service" means the EFILE Web service enabling machine to machine communication.

(d) "EFILE Official Mark" means the Official Mark 'EFILE', and the Official Mark 'EFILE and its associated design element'.

(e) "Electronic Transmission of Form T1135 Foreign Income Verification Statement Functionality" or "T1135 Foreign Income Verification

Statement Functionality" means functionality residing in a Software Product which meets the CRA T1135 Web service Specifications to enable the electronic submission of Form T1135, "Foreign Income Verification Statement" by invoking the CRA T1135 Form Submission Foreign Income Verification Statement Web service.

(f) "T1135 Foreign Income Verification Statement Web service" means the CRA Electronic service which when used in conjunction with Software Products that have passed both T3 EFILE Certification testing and T1135 "Foreign Income Verification Statement" Web service testing, enables the electronic submission of Form T1135, "Foreign Income Verification Statement".

(g) "Software Developer" means the legal entity, or in the case of a sole proprietor the individual identified at the beginning of this Agreement.

(h) "Software Product" means the tax preparation software application(s) listed below, developed for use by tax professionals for the sole purpose of processing and filing T3 Trust Returns for their clients designed for a specific platform including without limitation a Mac or Windows platform. Any other use is prohibited.

(i) "T3 Trust Return(s)" means the following trust returns individually or collectively as the case may be:

1. T3 Trust Income Tax and Information Return (T3RET);
2. T3 Supplementary Unemployment Benefit Plan Income Tax Return (T3S);
3. T3 Environmental Trust Income Tax Return (T3M);
4. T3 Retirement Compensation Arrangement Part XI.3 Tax Return (T3-RCA);
5. T3 Amateur Athlete Trust Income Tax Return (T3ATH-IND);
6. T3 Income Tax Return for Deferred Profit Sharing Plan (DPSP) or Revoked DPSP (T3D);
7. T3 Group Income Tax and Information Return for RRSP, RRIF, RESP, or RDSP Trusts (T3GR);
8. T3 Employees' Pension Plan Income Tax Return (T3P);
9. T3 Pooled Registered Pension Plan Tax Return (T3PRP);
10. T3 Registered Investment Income Tax Return (T3RI);
11. Canadian Amateur Athlete Trust Group Information Return (T1061);
12. Section 216 Returns.

(j) "Version" means each revision level of a Software Product resulting from a change in the executable code including without limitation, updates, modifications, enhancements or improvements.

(k) "JSON" means JavaScript Object Notation and structure which is the vehicle of data interchange between the T3 EFILE Electronic Filing Service and third party tax preparers.

1.2 In the event of conflict or inconsistency between this Agreement and the documents incorporated by reference such conflict or inconsistency shall be resolved by giving precedence to the documents in the following order:

(a) the Agreement;
(b) T3 EFILE Certification Guide;
(c) T3 EFILE Software Certification Application;
(d) T3 Electronic Filers Manuals;

1.3 Sections and Headings: The division of this Agreement into Sections and the insertion of headings are for the convenience of reference only and shall not affect the construction or interpretation of this Agreement.

1.4 Recitals: The Recitals to this Agreement are incorporated into and shall constitute a part of this Agreement.

2.0 T3 EFILE Certification Program

2.1 Certification under the T3 EFILE Certification Program is limited to software applications designed for use by tax professionals to prepare T3 Trust Returns including without limitation the T3 SCH 15 Beneficial Ownership Information of a Trust forms on behalf of their clients and for no other purpose.

3.0 Responsibilities of Software Developer

3.1 Software Developer shall be responsible for following the procedures set forth in this Agreement as well as those procedures outlined in the following documents: the T3 EFILE Certification Guide; the T3 Electronic Filers Manual, Chapter 1 – T3 Electronic Records Preparation; Chapter 2 – T3 EFILE Error Messages, Chapter 4 – T3 Return Specifications for Software Developers; T3 EFILE Web Service User Guide; Chapter 6 – T1135 XML Specifications for T1 EFILE/NETFILE, T2 Corporation, Partnership (T5) and T3 Trust Software Developers; and Rest-Open API.

Additionally, for Software Products containing any of the following functionalities; Electronic Transmission of Form T1135 "Foreign Income Verification Statement" the Software Developer shall also be responsible for following the procedures outlined in the documents as applicable: T1135 "Foreign Income Verification Statement" Web service Specifications.

3.2 Assignment of Software Product Identifier: The CRA will assign a CRA Software Product Identifier after the Software Developer's Application has been reviewed and accepted by CRA for participation in the T3 EFILE Certification

Program. The Software Developer shall not transfer or use a CRA Software Product Identifier on any product other than the Software Product for which it was issued. If a Software Product Identifier is used in a manner inconsistent with the foregoing, CRA shall have the right to terminate this Agreement, immediately de-certify all Software Developer's Software Products and to revoke all privileges associated with such certification.

3.3 The T3 EFILE Certification testing program tests for the CRA's EFILE transmission method available to tax professionals for JSON. EFILE for JSON allows transmission of one tax return at a time. Software Developer will submit their test files to the CRA via the CRA EFILE certification Web service.

4.0 T3 EFILE Certification Testing

4.1 File Compare Verification Testing: CRA tests the transmission of the Software Developer's test files by conducting file compare verification testing of the transmitted ".JSON" files to ensure mathematical accuracy and compliance with tax legislation. All ".JSON" files must achieve 100% accuracy to the CRA T3 EFILE Filing Service specifications set out in this Section 4.1, in order for CRA to continue the certification process. If 100% accuracy of the ".JSON" files is not achieved CRA shall notify Software Developer of such non compliance and Software Developer shall be required to correct all such deficiencies and resubmit the applicable files for the specific Software Product for the file compare verification testing.

4.2 Verification of Additional Forms: If submitted by the Software Developer, the CRA shall conduct the following additional review: (a) verifying (in both official languages if applicable) that Form T183 TRUST of an Information Return for the electronic filing of Trust Return, as produced by the Software Product is in accordance with the final version approved for print or for publication on the CRA's website; (b) verifying (in both official languages if applicable) that Form T1135 Foreign Income Verification Statement, as produced by the Software Product is in accordance with the final version approved for print; (c) verifying that the acknowledgement file report for EFILE as produced by the Software Product indicates that the T3 Trust Return record has been accepted for processing or was not accepted along with the reasons for non-acceptance and provides the time and date of the transmission.

4.3 In order to receive T3 EFILE Certification, each Software Product must pass certification testing and meet the requirements regarding exclusions as outlined in the T3 EFILE Certification Guide.

5.0 Error Correction by Software Developer

5.1 Any error that affects a calculation change or the content of a ".JSON" file identified by CRA at any time during the certification testing must be corrected

by Software Developer regardless of whether such error existed in a prior Version of the Software Product and had not previously been identified.

6.0 Successful Completion of Certification Testing

6.1 If the Software Product successfully meets all the requirements for certification testing as specified in this Agreement including without limitation the documents referenced herein, the CRA shall notify the Software Developer that the Software Product has passed certification testing.

6.2 Certification shall only apply to the specific Software Product having the CRA Software Product Identifier which has been tested and which successfully completed certification testing.

7.0 Timeframes for T3 EFILE Certification Program

7.1 Software Developer must electronically submit all ".JSON" files for a Software Product to the CRA for file compare verification testing no later than **January 31, 2026**. No late submissions will be considered by the CRA.

7.2 CRA will terminate all certification testing on **March 31, 2026** regardless of the Version of the Software Product undergoing testing.

7.3 Certification testing must be done on an annual basis for each Software Product as certification is specific to a Software Product for a specified taxation year.

7.4 CRA will endeavour to adhere to the time frames specified in the T3 EFILE Certification Guide. However, such time frames are provided for planning purposes only and in no event shall CRA be bound by such time frames.

8.0 Communication between the Parties

8.1 The Software Developer and the CRA agree that all communications between them will be professional and courteous. Aggressive behaviour and harassment will not be accepted or tolerated. The Software Developer and the CRA will ensure that their employees provide appropriate and courteous service. Should the Software Developer have a complaint, it should be forwarded to the Manager of the T3 Electronic Filing Services Section, Genevieve Chartrand, via email at **Genevieve.Chartrand@cra-arc.gc.ca.** The CRA will adhere to its internal policy on "Workplace Harassment and Violence Prevention and Resolution Procedures", and will investigate any reports of abuse or harassment against CRA employees. Should a complaint arise alleging that the Software Developer and/or its employees have harassed or verbally abused CRA personnel, the CRA will investigate. Following a preliminary investigation, if the complaint is found to be valid, certification testing will be temporarily halted until such time as the incident is resolved and/or investigated further if necessary. If there is ongoing harassment or abuse on the part of the Software Developer and/or its employees

the CRA reserves the right to discontinue all certification testing of the Software Product(s).

9.0 License to Use EFILE Official Mark

9.1 If a Software Product meets all the requirements of T3 EFILE Certification testing and provided that the Software Developer complies with all requirements as specified for post-certification as outlined in the T3 EFILE Certification Guide then the Software Developer will be granted a non-exclusive, personal, non-transferable, non-sub-licensable, license to use the EFILE Official Mark in respect of the Software Product for the 2025 taxation year having the CRA Software Product Identifier that has passed certification testing only as directed by CRA. Software Developer may also represent that the Software Product has passed CRA T3 EFILE Certification testing and the Software Product is therefore compatible with the CRA's T3 EFILE Electronic Filing Service.

9.2 Any limitations that a Software Product has with respect to capability of processing T3 Trust Returns must be listed clearly on the outside of the package, on all point of sale material and on the Software Developer's website.

9.3 All notices on any packaging or websites shall use at least eight point (p8) in size including exclusions, restrictions, etc.

10.0 Changes to Software Product Name or to Software Product

10.1 Change of Name: Grant of a license to use the EFILE Official Mark is specific to the Software Product Version for the 2025 taxation year as evidenced by the CRA Software Product Identifier for which certification has been granted. Software Developer shall provide CRA with written notice no less than thirty (30) days prior to the effective date of any name change to a certified Software Product including without limitation in any instance in which a Software Product is to be distributed in any manner using a product name that is different than the product name under which the Software Product was submitted to the CRA for certification testing.

10.2 Notification of Software Product Changes: In the case of changes made to a Software Product that has passed certification testing, Software Developer shall, within forty-eight (48) hours of the changes having been made, provide CRA with notice of the changes and shall as soon as reasonably practical provide CRA with a copy of the latest Version of the Software Product incorporating all changes for evaluation purposes. If in CRA's sole opinion any such changes affect T3 EFILE Certification or any of the Software Product's functionality including but not limited Electronic Transmission of Form T1135 "Foreign Income Verification Statement CRA shall have the right to revoke T3 EFILE Certification and service approval for the respective affected Software Product functionality.

11.0 Certification and License Non Transferable

11.1 T3 EFILE Certification and the license to use the EFILE Official Mark are non-transferable and non-sub-licensable. Certification of a Software Product shall immediately terminate if Software Developer sells, or otherwise transfers, or attempts to transfer its property rights including without limitation its intellectual property rights in a certified Software Product to a third party.

11.2 Software Developer may request the transfer of certification by written notice to CRA no less than thirty (30) days prior to the closing date of a sale, or transfer. Any request for transfer of certification shall include a notarized statement by a duly authorized individual (being an officer or director in the case of a corporation) containing a representation and warranty in favour of CRA by both Software Developer and the Purchaser of the Software Product that the Software Product made available to the public after the sale, or transfer, is exactly the same as the Software Product that received certification.

12.0 Functionalities that May Be Included at Software Developer's Discretion

12.1 Software Developer may, at its discretion, include within its Software Product the following functionality that conforms to the criteria and specifications, as set out in the T3 EFILE Certification Guide, and the Electronic Filer's Manual: T1135 Foreign Income Verification Functionality.

12.2 Upon Software Developer's written request the CRA will conduct service testing of the following functionality contained in Software Developer's Software Products:

– T1135 Foreign Income Verification Statement Functionality to determine if the Software Product's T1135 Foreign Income Verification Statement Functionality works with the CRA's T1135 Foreign Income Verification Statement Web service.

12.3 All requests by Software Developer for CRA service testing must be made by submitting the functionality, including instructions to invoke the service or functionality, as well as the activation key that allows the installation of the software, to the Acceptance Testing Operations Division for: T1135 Foreign Income Verification Statement Web service no later than **February 23, 2026**. The CRA will not accept any submission for testing as identified in this Subsection 12.3 after the foregoing specified date.

12.4 In order to pass service testing for the T1135 Foreign Income Verification Statement Web service the Software Product must meet the technical criteria and specifications as set out in the T3 EFILE Certification Guide, and the Electronic Filer's Manual as applicable for the service and;

For T1135 Foreign Income Verification Statement Web service: (i) achieve 100% accuracy in the delivery and formatting of the tax form data by the T1135 Foreign

Income Verification Statement Web service according to the CRA specifications; and (ii) receive and display any responses (successful or unsuccessful) returned by the CRA through the T1135 Web service.

12.4.1 If any of the requirements for passing service testing as set out in Subsection 12.4 above are not met, the CRA shall notify the Software Developer of such non-compliance which notice shall identify the relevant service testing. Software Developer shall be required to correct all such deficiencies and resubmit the Software Product for service testing. Failure to meet one hundred percent (100%) of the service testing criteria for a particular CRA Electronic Filing Service for a Software Product after submission of three (3) Versions of such Software Product will result in termination of the specific service testing for the Software Product for the 2026 tax filing season.

12.5 Regardless of the Version of the Software Product undergoing service testing, the CRA will terminate all service testing: on **March 31, 2026** for T1135 Foreign Income Verification Statement Web service.

12.6 If the Software Product successfully meets all the requirements for the service testing requested in the Software Developer's submitted service testing application form for T1135 Foreign Income Verification Statement Web service, as the case may be, as specified in this Agreement, including all referenced documentation including but not limited to the T3 EFILE Certification Guide, and the Electronic Filer's Manual, the CRA will provide Software Developer with written notice of successful completion of the applicable service testing.

12.7 If the Software Product passes: (a) T3 EFILE Certification testing; (b) T1135 Foreign Income Verification Statement Web service, within the time periods identified in the applicable CRA guides for such testing, then the CRA will enable the service which has passed testing for the Software Product Version for use in production.

12.8 No Software Product will be enabled by the CRA to use any T1135 Foreign Income Verification Statement Web service prior to passing both T3 EFILE Certification testing, and testing for the aforementioned service regardless of the timing of the respective CRA testing.

12.9 Failure to pass service testing of the T1135 Foreign Income Verification Statement Web service will not affect the T3 EFILE Certification.

12.10 The CRA may in its sole and absolute discretion deactivate the T1135 Foreign Income Verification Statement Web service, for a Software Product should the Software Developer fail to comply with the CRA requirements for use of the foregoing service or if the CRA believes that such action is necessary to protect the integrity of any of the foregoing services or other CRA electronic services and the general admiration and integrity of the tax system.

13.0 Prohibition Against Including Specified Functionalities

13.1 For purposes of this Section 13 "Interoperates" shall mean "the ability to exchange and use information."

13.2 The Software Product shall not contain any functionality that:

(a) interferes with the T1135 Foreign Income Verification Statement service;
(b) interferes with or interoperates with the T3 EFILE Electronic Filing Service or other CRA electronic services including without limitation the CRA My Account personal tax and benefit electronic information service; and Represent a Client Service;
(c) enables the automated extraction of any information generated on the EFILE website, or any other CRA websites, including without limitation the use of screen/site scraping.

13.3 Access to the T3 EFILE Electronic Filing Service is limited solely for the purposes of the electronic filing of T3 Trust Returns and for no other purpose. Software Products shall not include any services or functionalities that enable the use of the T3 EFILE Electronic Filing Service for any purpose other than the filing of T3 Trust Returns. These prohibited services or functionalities include but are not limited to: income verification; authorizing a representative for any reason other than filing T3 Trust Returns; document retrieval for any reason unrelated to the electronic filing of T3 Trust Returns; and accessing taxpayer data for the purpose of populating other applications or systems with the data.

13.4 CRA shall have the right to immediately revoke certification of a Software Product and all functionalities in the event of a breach of this Section 13.

14.0 Provision of Software Product to CRA

14.1 Software Developer hereby grants CRA a non-exclusive, personal, non-transferable, non sub-licensable license to use the Software Product solely for the purposes of conducting T3 EFILE Certification testing including without limitation testing of the following functionality as applicable: Electronic Transmission of Form T1135 "Foreign Income Verification Statement", which testing shall include but not be limited to error reporting, conducting post certification software testing and review. Software Developer shall provide CRA with electronic access to the Software Product including all related documentation, as well as any access codes or access keys which would otherwise restrict the CRA's ability to test, use or access the Software Products. Software Developer maintains all proprietary rights to the Software Product. The information contained in the Software Product and all related documentation must be kept confidential by the CRA and may be used solely for the purposes described above.

14.2 Software Developer shall provide the following information to the CRA: (a) All relevant IP addresses, port numbers, hosting platforms, and configuration parameters necessary for establishing and maintaining connectivity with the CRA's systems. (b) Contact information for the designated team or personnel responsible for managing security-related matters, including but not limited to incidents, security breaches, and urgent inquiries. This shall include daytime and after-hours telephone numbers and email addresses. Software Developer shall promptly notify the CRA of any changes to the aforementioned technical or contact information to mitigate the risk of operational disruption or security compromise.

15.0 Provision of Software Product Availability of Use

15.1 Software Developers shall ensure that the certified Software Product is available for use by electronic filers, and that the availability of use is not limited to one EFILE number only.

16.0 Provision of Software Product Support to Customers

16.1 Software Developer shall provide or cause a third party to provide primary software support to its customers or secondary support (i.e. escalation resolution) to customers providing primary support to their staff and other end-users, for its Software Products that have received T3 EFILE Certification. CRA will not provide software support for any Software Products.

17.0 Error Correction After Certification

17.1 If an EFILE certified Software Product is the subject of a CRA Software Problem Report, notice of the problem report including a specified time for error correction shall be provided by the CRA to the Software Developer. The time specified by the CRA for error correction shall be reasonable in the circumstances as determined in the sole discretion of the CRA. Software Developer shall correct the identified error within the time specified in the notice. Failure to correct the error within the specified time may, in the CRA's sole discretion, result in termination of this Agreement in accordance with Section 18 "CRA's Right to Terminate", and de-certification of the Software Product or disabling access to the applicable CRA Web services including without limitation: T1135 "Foreign Income Verification Statement".

18.0 CRA's Right to Terminate

18.1 CRA may terminate this Agreement immediately upon the provision of written notice to Software Developer if Software Developer breaches any term of this Agreement including without limitation: (a) if Software Developer makes any changes to a Software Product after T3 EFILE Certification has been given if in the CRA's sole opinion any such changes affect certification; (b) if Software Developer makes any changes to a Software Product after testing and approval of

the following functionalities as the case may be: Electronic Transmission of Form T1135 “Foreign Income Verification Statement” if in CRA’s sole opinion any such changes affect the applicable approvals; (c) use of a CRA Software Product Identifier other than as expressly permitted under this Agreement; (d) use of the EFILE Official Mark other than as expressly permitted under the terms of this Agreement; (e) failure to notify CRA of any change in a Software Product which is undergoing T3 EFILE Certification testing or which has been certified; (f) failure to correct an error in an T3 EFILE certified Software Product within the time specified in an error notice provided to the Software Developer under Section 17 “Error Correction After Certification”; (g) if Software Product contains any exclusions which had not been listed by Software Developer in the T3 EFILE Software Certification Application, or if Software Product contains any exclusions other than the expressly permitted exclusions as identified in the T3 EFILE Certification Guide; (h) use of T3 EFILE Electronic Filing Service other than for the sole purpose of processing and filing T3 Trust Returns with the CRA; and (i) inclusion of any functionality in a Software Product that is prohibited under Section 13 “Prohibition Against Including Specified Functionalities”.

18.2 Effect of Termination: Upon termination of this Agreement CRA may at its sole discretion: (a) immediately cease the certification process for any of the Software Developer’s Software Products; (b) de-certify any Software Product; (c) remove the Software Product from the CRA website list of T3 EFILE certified products; (d) block the Software Product from accessing or using the T3 EFILE Electronic Filing Service; (e) block the Software Product from accessing or using any of the following CRA Web service as applicable: T1135 “Foreign Income Verification Statement”. In the event of de-certification Software Developer’s right to use the EFILE Official Mark shall immediately terminate. Any image of the EFILE Official Mark shall be removed or covered from all Software Products including any packaging advertising, websites and documentation as soon as practical after de-certification.

19.0 Notice

19.1 Any notice required to be delivered under this Agreement shall be in writing and may be delivered by any of the following methods: by hand, by courier, by registered mail, by facsimile (with electronic mail confirmation that the facsimile has been sent), or by any electronic means that provides a paper record of the text of the notice, addressed to the Party for whom it is intended at the address set out in this Agreement or at the last address of which the sender has received notice in accordance with this section, including without limitation the date and time of sending. Notice shall be deemed to have been received in the case of mail on the third day after posting, in the case of hand delivery or courier upon receipt, in the case of electronic transmission or facsimile on the date of sending.

20.0 Disclaimer of Liability

20.1 The CRA may in its sole and absolute discretion modify any or all of its screens and systems at any time without any prior notification.

20.2 Inclusion of any of the following functionality: Electronic Transmission of Form T1135 Foreign Income Verification Statement within a Software Product is at the sole and exclusive risk of the Software Developer. CRA shall not be responsible if Software Product fails for any reason to function with any of CRA Web services including without limitation: T3 EFILE Electronic Filing, T1135 Foreign Income Verification Statement.

20.3 The CRA shall not be liable for any direct, indirect, special, incidental or consequential loss, or damages, including without limitation any lost profits, business interruption, or other commercial or economic loss, loss of programs or other data, under any theory of liability whether in contract, tort, strict liability or any other theory, howsoever arising out of the provision or non provision of T3 EFILE Certification testing, the participation by the Software Developer in T3 EFILE Certification testing, and testing of the following functionality: Electronic Transmission of Form T1135 "Foreign Income Verification Statement" even if expressly advised of the possibility of such damages, losses or inconveniences.

21.0 Indemnification

21.1 Software Developer shall indemnify and hold harmless the CRA, the Minister and their servants and agents from and against any and all damages, costs or expenses, or any claim, action, suit or other proceeding which they or any of them may at any time incur or suffer as a result of the provision or non provision of: certification or testing services including without limitation testing of Electronic Transmission of Form T1135 Foreign Income Verification Statement functionality, the T3 EFILE certification, EFILE non-certification, EFILE de-certification, enabling or disabling access to any CRA Web services including without limitation to: T1135 Foreign Income Verification Statement, and delays in any of such processes, including any claim against the Crown (CRA) arising from inaccurate reporting and filing of tax information as a result of language or instructions provided to users within the Software Product.

22.0 Non Disclosure of Software Developer Confidential Information

22.1 (a) For the purposes of this Section 22 "Confidential Information" shall mean the Software Developer's confidential information pertaining to the Software Product including without limitation features, functionality, architecture, screen layouts, and graphic user interfaces.

(b) Confidential Information shall not include any information that: (i) becomes publicly available from a source other than the CRA; (ii) is lawfully received by the CRA from any third party without restriction on disclosure or use; (iii) is approved in writing by Software Developer for release by the CRA.

22.2 Subject to the *Access to Information Act*, R.S.C. 1985, c A-1, the CRA shall only disseminate Confidential Information within the CRA to those CRA employees who have a need to know for the purposes of managing, supporting or running the T3 EFILE Electronic Filing Service program responsible for software certification and EFILE support.

22.3 Wherever practical, Software Developer shall mark or identify any Confidential Information delivered to CRA under this Agreement as "Confidential Information of (**Software Developer's name to be inserted**)".

22.4 The CRA shall have rules in place to keep Software Developer Confidential Information secure and limit access to those who have a legitimate need to know it. These shall include corrective measures for any CRA employee or any outside consultant working for the CRA who violates the rules. The CRA will notify the Software Developer of any breach of the terms of this Section 22 detailing corrective measures that have been taken.

23.0 Language Quality

23.1 Software Developer shall be responsible for ensuring that the language used in Software Products:

(a) is clear, accurate and provides instructions, information, and help features in user-friendly language;
(b) is grammatically correct and contains correct syntax throughout the Software Product;
(c) contain correct spelling;
(d) consistently uses the same language, so by way of example, if the French language has been chosen as the taxpayer's language of choice (in those cases where the product is bilingual) then all instructions are provided in the same language, namely French.

23.2 Software Developer shall have in place quality assurance procedures to ensure that Software Products meet the language requirements as set out in Section 23.1.

23.3 The CRA will monitor the language quality of Software Products and will notify the Software Developer in writing of any deficiencies that are found. Failure to comply with CRA notices respecting language quality may result in CRA interventions up to and including de-certification of Software Products.

24.0 Failure to Pass T3 EFILE Certification Program Testing

24.1 The T3 EFILE Certification Program is a testing service provided by the CRA to tax preparation Software Developers using publicly funded limited resources. Accordingly, the CRA reserves the right to refuse any Software Product for T3 EFILE Certification testing if the CRA reasonably believes that it is unlikely that

the Software Product will successfully pass the testing. In addition, the CRA shall not accept any Software Product for testing in its T3 EFILE Certification Program if the Software Product, regardless of the Version, has failed to pass T3 EFILE Certification testing for three consecutive years.

24.2 Any Software Product, regardless of the version, that has failed to pass T3 EFILE Certification testing for three consecutive years, may not be submitted to the CRA for testing for a minimum of two years following the last year that the Software Product failed the testing.

25.0 Social Media Posts

25.1 Software Developer shall ensure that all social media posts in respect of the Software Products and tax filing are accurate. The CRA will monitor Software Developer's social media posts from time to time and will notify the Software Developer in writing of any inaccuracies that are found. Software Developer shall remedy social media posts that are identified by CRA as being inaccurate, or incorrect as soon as reasonably possible.

26.0 Notification of Security Breaches

26.1 Software Developer shall provide CRA with written notice immediately upon discovery of a cyber attack, internal and external security breaches, or any attempt successful or not to access the Software Products. Such notice shall be provided via email to: **LOGT3SOFTG@cra-arc.gc.ca** and **Genevieve.Chartrand@cra-arc.gc.ca** and include the following information at a minimum: (a) date and time of the attack or attempted attack; (b) type of attack or security breach; (c) statement as to the success of the attack; (d) actions Software Developer is taking or will take to deal with the attack including timeframes for implementing such actions; (e) description of any information which was or may have been accessed or compromised including without limitation social insurance numbers; (f) where the attack or security breach occurred; (g) the source of the attack or security breach; (h) any further or other information as may be reasonably requested by the CRA to assist the CRA in ensuring that it's portals and systems are protected from cyber attacks.

26.2 Software Developer shall provide the CRA with ongoing updates on the status of the cyber attacks and/or security breaches against its Software Products until such time as the vulnerabilities have been remedied and shall provide such further and other information regarding the cyber attacks as may be reasonably requested by the CRA.

26.3 Failure to provide notice to the CRA under this Section 26 may, in the CRA's sole discretion, result in termination of this Agreement and de-certification of the affected Software Product in accordance with Section 18 "CRA's Right to Terminate", or disabling access to the T1135 Foreign Income Verification service.

27.0 Assignment

27.1 This Agreement shall not be assigned, in whole or in part by the Software Developer without the prior written consent of CRA and any purported assignment made without such consent is void and of no effect.

28.0 Governing Law

28.1 This Agreement, and all matters arising under or related hereto, shall be governed in accordance with the laws of the Province of Ontario. Software Developer agrees to submit to the exclusive jurisdiction of the courts of the Province of Ontario.

29.0 Failure to Enforce Default Not Waiver of Rights:

29.1 Failure or delay by the CRA in enforcing in whole or in part any provision of this Agreement shall not be construed as a waiver of any of its rights under this Agreement. Any waiver by the CRA of any breach of, or default under, any provision of this Agreement by the Software Developer will not be deemed a waiver of any subsequent breach or default and will in no way affect the other terms of this Agreement.

30.0 Severability:

30.1 If any provision of this Agreement shall be found to be unlawful, void or unenforceable, then such provision shall be deemed severable here from and will not affect the validity and enforceability of any remaining provisions.

31.0 Entire Agreement

31.1 This Agreement including those documents incorporated by reference constitutes the entire Agreement between the parties with respect to the subject matter hereof and supersedes any previous understandings, commitments, or Agreements, oral or written, with respect to the subject matter of this Agreement.

32.0 Amendment or Modification

32.1 This Agreement may not be modified or amended except through a written amendment Agreement signed by a duly authorized representative of the CRA and the Software Developer. No other act, usage, or custom shall be deemed to amend or modify this Agreement.

33.0 Counterparts and Electronic Signatures

33.1 This Agreement may be executed in counterparts, each of which so executed shall be deemed to be an original, and such counterparts shall together constitute one and the same Agreement. Any party shall be entitled to sign and transmit

electronic signatures to this Agreement and any such signature shall be binding on the party whose name is contained therein. Any party providing an electronic signature to this Agreement agrees to promptly execute and deliver to the other party, upon request, an original signed Agreement.

IN WITNESS WHEREOF the parties have caused this Agreement to be signed by their duly authorized representatives and made effective as of the date first set out above.

Canada Revenue Agency

Signature: _____

Name: _____

Title: _____

Date: _____

Software Developer

Please insert the complete name of the legal entity:

_____

(i.e. the complete name of the corporation, or in the case of a sole proprietor the full name of the individual.)

Signature: _____

Name: _____

Title: _____

Date: _____